

The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement (Compensation, Rehabilitation and Resettlement, Development Plan) Rules, 2015

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The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement (Compensation, Rehabilitation and Resettlement, Development Plan) Rules, 2015

UNION OF INDIA

India

The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement (Compensation, Rehabilitation and Resettlement, Development Plan) Rules, 2015

Rule

THE-RIGHT-TO-FAIR-COMPENSATION-AND-TRANSPARENCY-IN-LAND-ACQUISITION-REHABILITATION-AND-RE-SETTLEMENT-COMPENSATION-REHABILITATION-AND-RESETTLEMENT-DEVELOPMENT-PLAN-RULES-2015 of 2015

Published on 8 July 2015

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The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement (Compensation, Rehabilitation and Resettlement, Development Plan) Rules, 2015

Published vide Notification No. G.S.R. 547(E), dated 8th July, 2015

Ministry of Rural Development

G.S.R. 547(E). - The following draft of certain rules, which the Central Government proposes to make in exercise of the powers conferred by clauses (b), (e), (f), (g), (h), (i), (j), (k), (l), (m), (o), (p), (q), (r), (s), (t) and (u) of sub-section (2) of Section 109 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (

30 of 2013

) is hereby published, as required by section 112 of the said Act, for the information of all persons likely to be affected thereby; and notice is hereby given that the said draft rules shall be taken into consideration after the expiry of a period of thirty days from the date on which the copies of the Gazette containing this notification as are made available to the public;

2.

Any objection or suggestion which may be received from any person with respect to the said draft rules within the period so specified shall be considered by the Central Government;

3.

Objections or suggestions, if any, may be sent to the Joint Secretary (Land Reforms), Department of Land Resources, Ministry of Rural Development, "G" Wing, NBO Building Nirman Bhawan, New Delhi-110 011.

Chapter I

General

1.

Short title, applicability and commencement.

(1)

These rules may be called the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement (Compensation, Rehabilitation and Resettlement, Development Plan) Rules, 2015.

(2)

They shall be applicable in cases where the Central Government is the appropriate government as per the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (hereinafter referred to as the Act).

(3)

They shall come into force from the date of their final publication in the official Gazette.

2. Definitions.

- In these rules, unless the content otherwise requires,-

(a)

"Administrator" means an officer appointed by the Central Government or the Union territory for the purpose of rehabilitation and resettlement of affected families under sub-section (1) of Section 43 of the Act;

(b)

"Authority" means the Land Acquisition, Rehabilitation and Resettlement Authority established under section 51 of the Act;

(c)

"Commissioner" means the Commissioner for Rehabilitation and Resettlement appointed by the Central Government or the Union territory under sub-section (1) of Section 44 of the Act;

(d)

"competent Authority" is the Revenue Department of the State or Union territory;

(e)

"District Collector" means the Collector of the district and includes additional collector and any other officer designated by the Central Government for the area notified under provision of the clause (e) of section 3 of the Act;

(f)

"experts" as provided in sub-section (2) of section 7 of the Act;

(g)

"land bank" means the land bank as defined in Section 101 of the Act;

(h)

"Registrar" means the Registrar as provided in Section 55 of the Act;

(i)

"social audit" means the social audit as provided in section 44 and section 45 of the Act.

Chapter II

Request for land Acquisition

3. Request for land Acquisition.

(1)

Any requiring body or its representative duly authorised by it for whom land is to be acquired shall file the request to the concerned District Collector and to the Commissioner, Rehabilitation and Resettlement in Form-I together with the following documents.

(i)

Detailed project Report;

(ii)

Sanction letter of project;

(iii)

Three copies of Record of Right and revenue map of the affected areas;

(iv)

Information about the classification of land i.e. irrigated multi-crop or single crop or wasteland etc;

(v)

Any other information required by district collector.

(2)

In case of acquisition for Government, the request shall be filed by concerned Secretary of the Department or a person authorised by him.

(3)

If the request is made by anybody other than Government, the team of officers constituted by the Collector shall report on expenditure to be made from section 4 to 10 of the Act.

4.

Action by District Collector on receiving request

(1)

(a)

The District Collector, upon receiving request, shall constitute a committee of officers consisting of officers from Revenue Department, Agriculture Department, Forest Department, Water Resources Department, Building Department etc. to make a field visit along with the representatives of the requiring body to make a preliminary enquiry about - the availability of waste or arid land; the correctness of the particulars furnished and acquiring bare minimum land required for the project, whether the request is inconsistent with the provisions of the Act, and submit a report to the District Collector.

(b)

The Committee of officers referred in clause (a) shall amongst other matters, include all the following in its report, namely:-

(i)

assessment as to whether the proposed acquisition serves public purpose;

(ii)

whether the extent of land proposed for acquisition is the absolute bare-minimum extent needed for the project;

(iii)

whether land acquisition at an alternate place has been considered and found not feasible;

(iv)

there is no unutilised land which has been previously acquired in the area;

(v)

the land, if any, acquired earlier and remained unutilised, is used for such public purpose and make recommendations in respect thereof.

(2)

(a)

If the District Collector, based on the report of the committee referred in sub-rule (1), other information available with him and instructions issued by the Central Government in this regard, is satisfied that the request is consistent with the provisions of the Act; he shall make a preliminary estimate of the cost of the acquisition as defined in clause (a) of section 3 of the Act.

(b)

The administrative cost under item A of sub-clause (iv) of clause (i) of section 3 of the Act, shall be at the rate of 10% of the cost of compensation as provided in item (i) of section 3 (i) of the Act subject to a maximum of Rs. 5 crore.

(c)

The District Collector will inform the Requiring Body to deposit the estimated cost of acquisition in his office within a period as may be specified by him and the Requiring Body shall deposit the same within the period specified by the District Collector without which process under the Act shall not commence.

(3)

The Requiring Body shall deposit the balance cost of acquisition after final estimation is prepared by the Collector and if any excess amount is awarded by the Authority or a Competent Court, the same will be deposited as and when so required.

Chapter III

Preliminary Notification and Rehabilitation and Resettlement Scheme

5.

Publication of Preliminary Notification.

(1)

After conclusion of the social impact assessment study and consent of the affected persons or Gram Sabha, as the case may be, when it appears to the appropriate Government that land is required or likely to be required in any area for any public purpose, a preliminary notification shall be issued in Form II.

(2)

The preliminary notification shall be published in the manner provided in section 11 of the Act.

(3)

A copy of the preliminary notification shall be affixed at conspicuous places in the affected areas and shall also be informed to the public by beat of drum and shall be published in official Gazette.

(4)

After issuing the preliminary notification, the Collector shall ensure completion of the exercise of updating land records within a period of two months as specified here under:-

(a)

delete the entries of dead persons;

(b)

enter the names of the legal heirs of the deceased persons;

(c)

take effect of the registered transactions of the rights in land such as sale, gift, partition, etc.

(d)

make all entries of the mortgage in the land records;

(e)

delete the entries of mortgage in case the lending agency issues letter towards full payment of loans taken through registered reconveyance of mortgaged property deeds;

(f)

make necessary entries in respect of all prevalent forest laws;

(g)

make necessary entries in case of the Government land;

(h)

make necessary entries in respect of assets on the land like trees, wells; etc.

(i)

make necessary entries of share croppers in the land;

(j)
make necessary entries of crops grown or sown and the area of such crops; and

(k)
any other entries or up-dating in respect of land acquisition, rehabilitation and resettlement.

6.
Preliminary survey of land proposed for acquisition.

- The officer authorised by the District Collector to conduct preliminary survey shall have all the powers as provided under section 12 of the Act.

7.
Disposal of objections.

(1)
The Collector shall issue a notice in Form-III and after hearing all objections and making enquiry as provided under sub-section (2) of Section 15 shall submit a report along with his recommendations on the objections to the Secretary to the Revenue Department of State Government or Union territory Administration for decision and the report of the Collector shall, inter-alia, include the following:-

(a)
assessment as to whether the proposed acquisition serves public purpose;

(b)
whether the extent of land proposed for acquisition is the absolute bare-minimum extent needed for the project;

(c)
whether land acquisition at an alternate place has been considered and found not feasible;

(d)
there is no unutilised land which has been previously acquired in the area;

(e)
the land, if any, acquired earlier and remained unutilised, is used for such public purpose and make recommendations in respect thereof.

(2)
The decision of the Secretary to the Revenue Department of the State Government or Union territory Administration on the objections made under sub-section (2) of section 15 of the Act shall be final.

8.
Preparation of Rehabilitation and Resettlement Scheme and Public Hearing.

(1)
On publication of the preliminary notification under sub-section (1) of Section 11 of the Act, the Administrator for Rehabilitation and Resettlement shall conduct a survey and undertake a census of the affected families within a period of two months from the date of publication of such preliminary notification.

(2)
In the survey conducted and the census of the affected families so undertaken by the Administrator, wherever applicable under rule 3 or section 10A of the Act, he shall collect the data based on the Social Impact Assessment report as well as collect the data from the secondary sources such as Panchayat and Government records and verify that data by door to door visit of the affected families and by site visits in case of infrastructure projects in the affected area.

(3)
The draft Rehabilitation and Resettlement Scheme prepared by the Administrator shall, in addition to the particulars mentioned in the sub-section (2) of Section 16, contain the following:-

(i)
list of likely to be displaced families;

(ii)
list of infrastructure in the affected area;

(iii)
list of land holdings in the affected area;

(iv)
list of tress, buildings, other immovable property or assets attached to the land or building which are to be acquired;

(v)

list of trades or business in the affected area;

(vi)

list of landless people in the affected area;

(vii)

list of persons belonging to disadvantageous groups like persons belonging to the Scheduled Castes or Scheduled Tribes, handicapped or physically challenged persons in the affected area;

(viii)

list of landless agricultural labourers in the affected area;

(ix)

list of unemployed youth in the affected area.

(4)

The Administrator shall prepare comprehensive and detailed draft Rehabilitation and Resettlement Scheme and give wide publicity in the affected area and ensure that the affected persons are informed through publication in the following manner, namely: -

(a)

in the Official Gazette;

(b)

in two daily newspapers being circulated in the locality, of such area of which one shall be in the regional language;

(c)

in the local language in the Panchayat, Municipality or Municipal Corporation, as the case may be, and in the offices of the District Collector, the Sub-Divisional Magistrate and the Tehsil;

(d)

uploaded on the website of the appropriate Government;

(e)

in the affected areas.

(5)

The Administrator or an officer authorised by him shall conduct a public hearing in the affected areas on such date, time and venue as decided by giving advance notice of three weeks and the provisions of rule 8 of the Right to Fair Compensation and Transparency in Land acquisition, Rehabilitation and Resettlement (Social Impact Assessment and Consent rules, 2014 dated 08-08-2014 relating to the public hearing shall, mutatis mutandis, apply to the public hearing in this case also.

9.

Publication of the Approved Rehabilitation and Resettlement Scheme.

- The Commissioner of Rehabilitation and Resettlement shall publish the approved Rehabilitation and Resettlement Scheme in the affected area by affixing in conspicuous places in addition to making it public by other means provided in section 18 of the Act and the Commissioner shall also inform the National Monitoring Committee constituted under section 48 of the Act about the publication of the approved Rehabilitation and Resettlement scheme.

10.

Development Plan for Scheduled Castes or Scheduled Tribes Families.

(1)

The Development Plan to be prepared in cases of a project involving land acquisition on behalf of a requiring body which involves involuntary displacement of the Scheduled Castes or Scheduled Tribes families under section 41 of the Act shall be as per Form IV.

(2)

The resettlement areas predominantly inhabited by the Scheduled Castes and the Scheduled Tribes shall get land free of cost for community and social gatherings as decided by the Collector from time to time.

Chapter IV

Declaration, Award and Compensation

11.

Publication of Declaration for Acquisition.

(1)

Upon receipt of a report of the Collector as provided under sub-section (2) of section 15 and after examination and taking a decision on the objections, a declaration for acquisition of the land under sub-section (1) of section 19 of the Act along with the summary of the Rehabilitation and Resettlement Scheme shall be made by the Secretary to the Revenue Department of the State Government or Union territory Administration in Form V:

Provided that no such declaration shall be made unless the requiring body has deposited an amount in full towards the cost of acquisition of the land.

(2)

The declaration referred in sub-rule (1) shall be published in the manner prescribed under sub-section (4) of section 19 and also in the affected areas by way of affixing a copy of the declaration in local language at conspicuous places in the Panchayat, Mandal, area of Local Body, as the case may be, under which the affected area falls.

12.

Land Acquisition Award.

- The Collector after enquiry into and disposal of the objections, if any, raised by the interested persons in pursuance of the public notice published and given under sub-section (1) of section 21, shall make land acquisition Award under section 23 of the Act as per Form VI.

13.

Rehabilitation and Resettlement Award.

(1)

The Collector shall also make Rehabilitation and Resettlement Award for each affected family in accordance with the section 31 of the Act in Form VII and hand over family wise Awards to each affected family.

(2)

The recovery of any rehabilitation and resettlement benefit availed of by making a false claim or through fraudulent means, on refusal to refund shall be recovered as an arrear of land revenue invoking the provisions of the Revenue Recovery Act, 1890 (1 of 1890).

(3)

The provision of infrastructural facilities and basic minimum amenities specified in the Third Schedule of the Act in Form VIII.

14.

Compensation.

(1)

The compensation shall be calculated as per the provisions laid down under section 26 to section 30 read with the First Schedule of the Act and paid.

(2)

The one-time grant to artisans, small traders and others under item 8 of Second schedule of Act shall be minimum rupees twenty - five thousands.

(3)

The manner in which fishing rights shall be allowed to affected families in cases of irrigation or hydel projects under item 9 of Second Schedule of Act shall be notified by the Fisheries Department in consultation with Irrigation department and Revenue Department or any other Government Department as required.

(4)

The payment of compensation shall be made expeditiously through account payee cheques or electronic mail transfer.

(5)

Where any excess amount is proved to have been paid to any person as a result of the correction made in an award under sub-section (1) of section 33 and such person refuses to refund the said excess amount paid to him, then such amount shall be recovered as an arrear of land revenue invoking the provisions of the Revenue Recovery Act, 1890 (1 of 1890) and such proceedings shall be initiated within three years from the date on which the excess amount is found to have been paid.

15.

Limits on extent of land under sub-section (3) section 2 read with section 46 of the Act.

- The limits on extent of land beyond which provisions of Rehabilitation and Resettlement under the Act apply, in cases

of purchase by a person other than specified person through private negotiation shall be fifty (50) acres in urban areas and two hundred (200) acres in rural areas.

16.

Meaning of landless.

- The term "landless" shall have the same meaning as defined by the respective State Government or Union territory administration, as the case may be.

17.

Multiplication Factor in rural areas.

- In case of rural areas, the factor by which the market value is to be multiplied as per column no. 3 of serial no. 2 of the First Schedule read with sub-section (2) section 30 of the Act shall be 2.00 (two).

18.

Power to issue notification under section 10A of the Act.

- The Secretary to the Revenue Department of Union territory Administration or Joint Secretary of the concerned Department of the Central Government shall be empowered to issue notification under section 10A of the Act.

19.

Net sown area that can be acquired in a district.

- The area of agricultural land in aggregate acquired for all projects in a district shall in no case, exceed the limit, as decided by the Competent Authority.

20.

Irrigated multi-cropped land that can be acquired in a district.

- The area of irrigated multicropped land, and aggregate acquired for all projects in a district, shall in no case, exceed the limit, as decided by the Competent Authority.

Chapter V

Administrator and Rehabilitation and Resettlement Committee and National Monitoring Committee

21.

Power, duties and responsibilities of the Administrator.

- The Administrator shall exercise the powers and perform the duties and have the responsibilities as follows:-

(a)

to conduct a survey and undertake a census of the affected families in the manner and within time as provided under these rules and the Act;

(b)

to prepare a draft Rehabilitation and Resettlement Scheme;

(c)

to publish the draft scheme by the mode provided under these rules;

(d)

to make the draft scheme available to the concerned persons and authorities;

(e)

to organise and conduct public hearings on the draft scheme;

(f)

to provide an opportunity to the Requiring Body to make suggestions and comments on the draft scheme;

(g)

to submit the draft scheme to the Collector;

(h)

to publish the approved Rehabilitation and Resettlement Scheme in the affected area;

(i)

to help and assist the Collector in preparing the Rehabilitation and Resettlement award;

(j)

to monitor and supervise the implementation of the Rehabilitation and Rehabilitation award;

(k)

to assist in post-implementation audit of Rehabilitation and Resettlement, and

(l)

any other work required to be done for Rehabilitation and Resettlement.

22.

Rehabilitation and Resettlement Committee at Project Level.

(1)

The Principal Secretary of the Revenue Department to the State Government or Union territory Administration shall under sub-section (1) and (2) section 45 of the Act constitute a Rehabilitation and Resettlement Committee at project level under the chairpersonship of the Collector to monitor and review the progress and implementation of the Rehabilitation and Resettlement Scheme and to carry out post implementation social audits in consultation with the Gram Sabha in concerned Gram Panchayat in the rural area and area of urban local body, as the case may be.

(2)

The Rehabilitation and Resettlement Committee shall include, apart from officers of the appropriate Government, the following members, namely: -

(a)

a representative of women residing in the affected area;

(b)

a representative each of the Scheduled Castes and the Scheduled Tribes residing in the affected area;

(c)

a representative of a voluntary organisation working in the area;

(d)

a representative of a nationalised bank;

(e)

the Land Acquisition Officer of the project;

(f)

the Chairpersons of the panchayats or municipalities located in the affected area or their nominees;

(g)

the Chairperson of the District Planning Committee or his nominee;

(h)

the Member of Parliament and Member of the Legislative Assembly of the concerned area or their nominees;

(i)

a representative of the Requiring Body; and

(j)

Administrator for Rehabilitation and Resettlement as the Member Convenor.

(3)

(a)

The Committee shall have its first meeting when a draft Rehabilitation and Resettlement Scheme has been prepared by the Administrator.

(b)

The Committee shall discuss the scheme and make suggestions and recommendations and thereafter, the Committee shall meet and review and monitor the progress of Rehabilitation and Resettlement once in a month till the process of rehabilitation and resettlement is completed. For the purpose of carrying out the post-implementation social audits, the Committee shall meet once in three months.

(c)

The Committee may visit the affected area and discuss with the affected families if it so desires and also visit the resettlement area to monitor the resettlement process.

(4)

The non-official members of the Committee, if any, shall get travelling and daily allowance at the rate admissible to the Class I Officers of the Central Government.

23.

Establishment of Land Acquisition, Rehabilitation and Resettlement Authority.

(1)

The appropriate government shall establish a Land Acquisition, Rehabilitation and Resettlement Authority under chapter

VIII of the Act.

(2)

The salary and allowances payable to and the other terms and conditions of service (including pension, gratuity and other retirement benefits) of the Presiding Officer of Land Acquisition, Rehabilitation and Resettlement Authority shall be the same as applicable to a District Judge.

(3)

The salary and allowances payable to and the other terms and conditions of service (including pension, gratuity and other retirement benefits) of the Registrar of the Land Acquisition, Rehabilitation and Resettlement Authority shall be the same as applicable to the rank of Deputy Secretary in Central Government.

(4)

The salary and allowances payable to and the other terms and conditions of service (including pension, gratuity and other retirement benefits) of the officers and employees of the Land Acquisition, Rehabilitation and Resettlement Authority shall be the same as applicable to the equivalent officers of the Central Government.

24.

Powers of Authority and procedure.

- The Authority shall, for the purposes of its functions under this Act, shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908, (5 of 1908) in addition to the matters listed under sub-section (1) of Section 60 of the Act, in respect of any other matter notified for the purpose by Secretary to the Revenue Department of the State Government or of the Union Territory Administration.

25.

Procedure of National Monitoring Committee for Rehabilitation and Resettlement and Allowances of the experts associated with it.

(1)

The National Monitoring Committee constituted under Section 48 shall review and monitor the implementation of the Rehabilitation and Resettlement Schemes for the projects within two months of the publication of the said approved Schemes by the Commissioner of the Rehabilitation and Resettlement under section 18 of the Act and thereafter, the meetings of the Committee shall be held once in three months to review and monitor the implementation of the rehabilitation and resettlement schemes.

(2)

The non-official experts associated with the National Monitoring Committee shall be paid travelling and daily allowance at the rate admissible to the Class-I rank Officers of the Central Government for journeys outside headquarter.

Chapter VI

Miscellaneous

26.

Return of Land to the Original Land Owner.

(1)

Where any land acquired under the Act remains unutilised for a period specified for setting up of any project or a period of five years whichever is later, from the date of taking over the possession by the requiring body, the same shall be returned to the original owner or owners or their legal heirs, as the case may be, or to the Land Bank by issuing a notice to the Requiring Body for whom the land was acquired and by giving an opportunity of being heard and by passing necessary order in writing by the District Collector in this behalf for this purpose.

(2)

After passing the written order as above, the District Collector shall take the possession of the acquired land for the purpose of returning the same to the original owner or owners or their legal heirs, as the case may be, or to the Land Bank as defined in section 104 of the Act.

(3)

If the Requiring Body does not handover possession of the said land to the Collector, Collector shall be competent to take the help of Executive Magistrate and police force to take the possession by after giving prior notice to the Requiring Body.

Form-I

(See rule 3)

Request for Land Acquisition

From :

Name

and/ or Designation of the Requiring Body

To :

1. The District Collector

District

2. Commissioner, R&R,

.....

It is requested to acquire acre(s) of land for which project/ purpose and the details are furnished in Annexure (Appendix) I, II & III along with three copies of Combined Sketch (to scale) showing the lands to be acquired.

The gestation period of the project will be years and months (applicable only if gestation period is more than 5 years.)

Requisite cost of acquisition including cost of social impact assessment study (SIA) is available and will be deposited in your office, as provided under provisions of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 as and when required by you. It is certified that the land to be acquired was demarcated on the field and all further necessary information and assistance will be provided on the date/time appointed/stipulated by you.

Yours faithfully

Requiring Body

Annexure - I

Name of the project:-

(1)

Name of the village-

(2)

Name of the Mandal-

(3)

Name of the Municipality/Municipal Corporation-

(4)

Name of the District-

(5)

Survey Nos. to be acquired-

(6)

Total area under request (in hectare /Sq.metres)

(7)

Boundaries of the area to be acquired-

East-

West-

North-

South-

(8)

Area of the agricultural and irrigated multi-cropped land

(9)

Reasons for inclusion of agricultural and irrigated multi-cropped land

.....

.....

.....

(10)

Details of buildings and other structures, tanks, wells, trees, etc.,

(11)

Reasons for the inclusion of religious building, graveyard or tomb etc. for acquisition, if any.

Requiring Body

Annexure - II

Preliminary Notification

Name of the project:-

1. Department or Government or Company, Local Authority, Institution:

2. Official designation of the requiring body:-

3. Purpose of Acquisition (in detail) :-

4. Whether the request is filed u/s 2(1) of the Act by the Government or Department for its own use hold and control :-

5. Whether the request is filed u/s 2(1)(a) to 2(1) (f) of the Act:-

6. Whether the request is filed u/s 2(2) (a) or (b) of the Act :-

7. How many families are affected as described u/s 3(c)(i) to (vi) of the Act:-

8. Whether the request is filed u/s 40 of the Act :-

9. If so, on what ground?

10. Has the land for the project been partially purchased from the owners by private negotiation?

11. If so, on what date and on what terms (please state the terms of negotiation in short and attach the copy of it)

12. Date of issue of administrative approval for the project (copy to be attached) in case of Government or department or local authority.

13. Reasons for delay in filing request, if request is filed after 6 weeks from the date of administrative approval of the project in case of Government or department or local authority.

14. By what time possession of the land is required.

Requiring Body

Annexure III

Certificate to be furnished along with the request for acquisition of land by the requiring authorities

Name of the project:-

(1)

Certified that the project for which the land is sought to be acquired has been administratively approved vide Department letter No., dated for acquisition under the A (Copy of letter attached).

(2)

The estimated cost of the project is of Rs. and necessary budget was sanctioned and funds are available towards cost of acquisition.

(3)

The Department undertakes to pay the full amount in case of decree by the Land Acquisition, Rehabilitation and Resettlement Authority/High Court/Supreme Court as and when asked to do so by the Collector/ District Collector.

Requiring Body

Form II

[See rule-4 and Section-11(1)]

Preliminary Notification

No.

Dated

Whereas it appears to the Collector that a total of acres land is required in the Village Mandal District for public purpose, namely, Social Impact Assessment Study was carried out by SIA Unit and a report submitted / preliminary investigation was conducted by a team constituted by District Collector as laid down under rule 4. The summary of the Social Impact Assessment Report/ preliminary investigation is as follows (Attach copy of SIA report):

A total (no.) families are likely to be displaced due to the land acquisition. The reason necessitating such displacement is given below.

..... is appointed as Administrator for the purpose of rehabilitation and resettlement of the affected families. Therefore it is notified that for the above said project in the Village of Mandal District a piece of land measuring, hectares

viz., hectare of standard measurement, whose detail description is as following, is under acquisition:

Sl. No.

Survey No.

Type of Title

Type of Land

Area under Acquisition (in acre)

Name & Address of person interested

Boundaries

N.

S.

E.

W.

Trees

Structures

Variety

Number

Type

Plinth area

This notification is made under the provisions of Section-11(1) of the Right to Fair Compensation and Transparency in Land acquisition, Rehabilitation and Resettlement Act, 2013 (Act no. 30/2013), to all whom it may concern.

A plan of the land may be inspected in the office of the District Collector and on any working day during the working hours.

The Government is pleased to authorize Officer and his staff to enter upon and survey land, take levels of any land, dig or bore into the sub-soil & do all other acts required for the proper execution of their work as provided and specified in section 12 of the said Act.

Under section 11(4) of the Act, no person shall make any transaction or cause any transaction of land i.e. sale/purchase, etc., or create any encumbrances on such land from the date of publication of such notification without prior approval of the Collector.

Objections to the acquisition, if any, may be filed by the person interested within 60 (sixty days) from the date of publication of this notification as provided under section 15 of the Act before District Collector.

Since the land is urgently required for the project falling within the purview of section 40(2) and the same has approval of the Parliament, it has been decided not to carry out the Social Impact Assessment Study, vide G.O. No., dated (Strike if not applicable)

Encl : As above

Place:

Date:

District Collector

Form No. III

[See Rule 6 and Section 15(2) of the Act]

Notice by Collector

No.

Dated

Notice is hereby given that the land specified in the appended schedule and situated in the village of in the Mandal/Tehsil/other nomenclature in the District of is needed or is likely to be needed in accordance with the notification under section-11(1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (30 of 2013

) published by the District Collector at page of part I of the ?name of State/UT? Gazette, dated All persons interested in the land are accordingly required to lodge their objections before within sixty (60) days from the date of publication of the above notification a

statement in writing of their objection, if any, to the acquisition of the said land.

Any objection statement which is received after the due date or which does not clearly explain the nature of the senders interest in the lands is liable to be summarily rejected.

Objections received within the due date, if any, will be enquired into on at when the objectors will be at liberty to appear in person or by Advocate and to adduce any oral or documentary evidence in support of their objections.

Schedule

Sl. No.

Survey No.

Total Extent A.Cs.

Extent under Acquisition A.Cs.

Name & address of the person interested

Boundaries N.S.E.W

Details of Trees, Structures etc., if any

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Place :

Collector

Date :

Form No. IV

[See Rule - 10(1)]

Format for Development Plan under R&R scheme for SC/ST families displaced due to land acquisition

S. No.

Name of the Claimant/ family head

Permanent Address

Entitlements(See section 31, 41 and Second

Schedule of the Act)

Remarks

1.

Land up to one acre for agricultural, horticultural, cattle grazing field per family shall be provided.

2.

Provision of dwelling housing unit per family, Drinking Water facility toilette etc.,

3.

One time financial assistance of Rs. One lakh fifty thousand per family shall be given.

4.

For landless laborers employment shall be provided under MNREGA or/and any other job providing scheme of the government,

5.

Skill development through different training programs for the youth of affected family.

6.

Subsistence grant for displaced family allowance equivalent toRs. Three thousandper month for a year from the date

of award.

7.

For cattle shed and petty shop minimum Rupees twenty five thousand.

(a)

Details of Land rights due, but not settled :

(b)

Details of actions for restoring titles of the Scheduled Tribes as well as the Scheduled Castes on the alienated land by undertaking a special drive.

(c)

Programme for development of alternate fuel, fodder and non-timber forest produce resources on non-forest lands within a period of five years, sufficient to meet the requirements of tribal communities as well as the Scheduled Castes.

Form V

[See Rule-11(1) and Section-19(1) of the Act]

Declaration by District Collector

No.

Dated

Whereas it appears to the Government that a total of acres land is required in the Village Mandal District for public purpose, namely,

Therefore declaration is made that a piece of land measuring, acres viz; hectares of standard measurement under acquisition for the above said project in the Village Mandal District whose detailed description is as following:

Sl. No.

Survey No.

Type of Title

Type of Land

Area under Acquisition (in (hectare)

Name & Address of person interested

Boundaries

N.

S.

E.

W.

Trees

Variety

Number

Structures

Type

Plinth Area

This declaration is made after hearing of objections of persons interested and due enquiry as provided u/s 15 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (30 of 2013

). The number of families likely to be resettled due to Land Acquisition is for whom Resettlement area has been identified, whose brief description is as following:-

Village Mandal District Area (in acres)

Mines of coal, iron-stone, slate or other minerals lying under the said land or any particular portion of the said land, except such parts of the mines and minerals which may be required to be dug or removed or used during the construction phase of the project for the purpose of which the land is being acquired, are not needed.

A plan of the land may be inspected in the office of the Land Acquisition Officer & on any working day.

A summary of the Rehabilitation and Resettlement Scheme is appended.

Encl : As above

District Collector

Form VI

[See rule-12 and section 23 & 30 of the Act]

Land Acquisition Award

Land Acquisition Case No.

Name of the Project -

Number and date of declaration under which the land is to be acquired

Situation and extent of the land in hectares, the number of field plots on the survey map, village in which situated with the number of mile plan if any.

Description of the land, i.e., whether fallow, cultivated, homestead, etc. If cultivated, how cultivated? Source of irrigation

Names of persons interested in the land and the nature of their respective interests.

Amount allowed for the land itself, without trees, buildings etc., if any

Amount allowed out of such sum as compensation for the tenants interest in the land.

Basis of calculation:

Amount allowed for trees, houses or any other immovable property

Amount allowed for crops.

Additional compensation on the market value under section 30(3)

Damages under section 28 of Act 30 of 2013

Solatium under section 30(1)

Award under section 23 and 30 of Act, 30 of 2013

Particulars of abatement of Government Revenue, or of the capitalized value paid, the date

Particulars

of abatement of Government Revenue, or of the capitalized value paid, the date from which the abatement takes effect

Apportionment of the amount of compensation

Serial No.

Name of claimants

Amount payable to each

Bank A/c No.

Remarks

Area (in hectares)

Date on which possession was taken u/s. 38(1) & 40(1) of Act of 30/2013.

If under section 40(1) the number and date of the order of government giving authority to do so.

Date:

Signature

Form VII

[See rule-13 (1) and Second Schedule of the Act]

Award for Rehabilitation and Resettlement

Land Acquisition Case No.

1.

Name of the Project -

2.

Number and date of declaration under which the land is to be acquired

3.

Situation and extent of the land in acres, the number of field plots on the survey map, the village in which situated with the number of mile plan if any.

4.

Description of the housing units, transportation cost, housing allowances, annuity, employment subsistence grant, cattle shed, petty shop, one time resettlement allowances etc.

5.

Name/Names of persons interested in the land and the nature of their respective claim for rehabilitation and resettlement.

6.

Apportionment of the amount of compensation Area (in hectares)

Sl. No.

Name of claimants/ affected family

R & R entitlements

Bank A/c. No.

Amount payable to each

Non monetary entitlements

Remarks

(i)

House to be allotted

(ii)

Land to be allotted

(iii)

Fishing rights

(iv)

Annuity

(v)

Employment transportation cost, Housing allowances,

(vi)

Annuity

(vii)

Employment

(viii)

Subsistence grant

(ix)

Cattle shed, Petty shop,

(x)

One time resettlement allowances

(xi)

One time resettlement allowances

7.

Date on which R & R entitlements given to the affected family.

8.

Basis of calculation:

9.

Amount allowed for trees, houses or any other immovable things.

10.

Amount allowed for crops.

11.

Additional compensation on the market value under section 30(3)

12.

Damages under section 28 of Act 30 of 2013

13.

Solatium u/s 30(1)

14.

Award under section 23 and 30 of Act 30 of 2013

15.

Particulars of abatement of Government Revenue, or of the capitalized value paid, the date from which the abatement takes effect.

Apportionment of the amount of compensation.

Serial No.

Name of claimants

Amount payable to each

Bank A/c. No.

Remarks

Area (in hectares)

16.

Date on which possession was taken u/section 38(1) & 40(1) of Act of 30/2013.

If under section 40(1) the number and date of the order of government giving authority to do so.

Date:

Signature

Form VIII

[Under third schedule of Act-30/2013 and Rule 13(3)]

Format for Provision of Infrastructural Amenities under Rehabilitation and Resettlement scheme for families displaced due to Land Acquisition

S.No.

Components

Details of infrastructure amenities

1.

Roads

2.

Drainage

3.

Drinking water

4.
Drinking water for cattle
 5.
Grazing land
 6.
Fair Price Shops
 7.
Panchayat buildings
 8.
Post Offices
 9.
Fertilizer storage
 10.
Irrigation facilities
 11.
Transport facilities
 12.
Burial or cremation ground
 13.
Toilet points
 14.
Electric connections
 15.
Nutritional services
 16.
Schools
 17.
Sub-health centre
 18.
Primary Health Centre
 19.
Play ground
 20.
Community centre
 21.
Places of worship
 22.
Separate land for tribal institutions
 23.
Timber forest produce
 24.
Security arrangements
 25.
Veterinary services
 26.
Any other infrastructure amenity
- Related AI tags, queries and research notes
- Translation